

MASTER SOFTWARE LICENCE AGREEMENT

This Master Software Licence Agreement ("Agreement") is entered into as of April 12, 2026 ("Effective Date") between **Lumen Cloud Services, Inc.**, a Delaware corporation ("Vendor"), and **Riverstone Manufacturing Co.**, a Pennsylvania corporation ("Customer").

1. Licence and Services

Vendor grants Customer a non-exclusive, non-transferable licence to use the Lumen Workflow Platform (the "Service") for Customer's internal business operations. Vendor shall provide standard support during business hours (Monday-Friday, 8:00-18:00 ET) with a 4-hour response target for priority incidents.

2. Service Level Agreement

Vendor commits to **99.9% monthly uptime** measured over each calendar month, excluding pre-announced scheduled maintenance (capped at 4 hours per month). If uptime falls below the commitment, Vendor shall issue automatic service credits: 10% of the monthly fee for 99.0%-99.9% availability, 25% for 95.0%-99.0%, and 50% for any month below 95.0%. Three consecutive months below 99.0% give Customer the right to terminate for cause without penalty.

3. Fees and Payment

Customer shall pay Vendor an annual subscription fee of **USD 96,000**, invoiced quarterly in advance. Annual price increases at renewal are capped at **the lesser of CPI + 2% or 5%**. Late payments accrue interest at the lower of 1% per month or the maximum rate permitted by applicable law. Fees paid for unused service time following termination for Vendor's material breach shall be refunded on a pro-rata basis within 30 days.

4. Term and Termination

The initial term is two (2) years from the Effective Date. The Agreement renews automatically for successive one-year terms unless either party gives **thirty (30) days' written notice** of non-renewal. Either party may terminate for material breach upon **thirty (30) days' written notice** if the breach remains uncured. Customer may terminate for convenience at any time with 60 days' notice; in such case Customer pays only the fees for services actually delivered through the termination date.

5. Customer Data and Privacy

Customer retains all right, title and interest in Customer Data. Vendor receives a limited licence to process Customer Data **solely to provide the Service** for Customer's benefit. Vendor shall not use, disclose, mine, or train any models on Customer Data for any other purpose. A separate Data Processing Addendum incorporating GDPR Article 28 and equivalent provisions is attached as Exhibit B. Customer Data is stored exclusively in **EU and US data centres** specified in Exhibit B; any change requires Customer's prior written consent.

6. Security and Breach Notification

Vendor shall maintain SOC 2 Type II and ISO 27001 certifications throughout the term, with annual third-party attestation provided to Customer. Vendor shall notify Customer of any Security Incident

affecting Customer Data **within 24 hours** of discovery, with a full written report within 72 hours.

7. Liability

Each party's total aggregate liability under this Agreement is capped at **two (2) times the fees paid by Customer in the twelve (12) months preceding the claim**. The cap does NOT apply to: (a) breaches of confidentiality, (b) breach of data-protection obligations, (c) IP infringement indemnification, or (d) gross negligence or wilful misconduct. Indirect, consequential, and punitive damages are mutually waived, except for the carve-outs above.

8. Indemnification

Mutual indemnification. Vendor shall defend, indemnify and hold Customer harmless from any third-party claim that the Service infringes a valid IP right, with full defence rights and a "modify, replace or refund" obligation. Customer shall defend, indemnify and hold Vendor harmless from claims arising out of Customer's misuse of the Service in violation of this Agreement.

9. Data Export and Transition Assistance

Upon termination or expiration for any reason, Vendor shall make Customer Data available for export in industry-standard formats (CSV, JSON, Parquet) at **no additional cost** for a period of ninety (90) days. Vendor shall provide reasonable transition assistance during this period at its then-current professional services rates. After 90 days, Vendor shall securely delete all Customer Data and certify deletion in writing.

10. Audit Rights

Customer may, upon thirty (30) days' written notice and no more than once per year, audit Vendor's compliance with the security and data protection terms of this Agreement, either directly or through a qualified independent auditor bound by reasonable confidentiality obligations.

11. Governing Law and Dispute Resolution

This Agreement is governed by the laws of the State of New York. Disputes shall first be referred to senior executives for good-faith negotiation for thirty (30) days; if unresolved, disputes may be brought in the state or federal courts located in New York County, New York. Each party retains the right to seek injunctive relief in any court of competent jurisdiction.

12. Assignment

Neither party may assign this Agreement without the other party's prior written consent, which shall not be unreasonably withheld. Either party may assign on written notice to a successor in a merger, acquisition or sale of substantially all assets, provided the assignee assumes all obligations under this Agreement.

IN WITNESS WHEREOF, the parties have executed this Agreement as of the Effective Date.

Lumen Cloud Services, Inc. _____

Riverstone Manufacturing Co. _____